

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF CROSS-CASE
JUDICIAL ESTOPPEL FACTS**

Hearing: June 24, 2026

Time: 9:00 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rule 3.1110; and Code of Civil Procedure section 425.16, subdivision (b)(2).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court's authority to consider the substance is under Evidence Code sections 452, sub-
2 division (d), 452, subdivision (h), and 453; *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986
3 to 987; *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181; and Department
4 302's May 13, 2026 scheduling order.

5 5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section
6 1005, subdivision (b), and Department 302's May 13, 2026 scheduling order.

7 **I. PURPOSE**

8 Plaintiff respectfully gives notice that he asks Department 302, at the consolidated June 24, 2026
9 hearing on Defendant CSAA Insurance Exchange's pending special motion to strike under Code
10 of Civil Procedure section 425.16, demurrer, and motion to strike under Code of Civil Procedure
11 section 436, to do two things on the cross-case record:

- 12 1. Take judicial notice, under Evidence Code sections 452, subdivisions (d) and (h), and 453,
13 of the existence, filing, contents, and legal effect of identified court records from the related
14 action *Rosario v. Abdelhalim, et al.* (CGC-25-631801, Dept. 301), including the defense
15 anti-SLAPP and demurrer briefs filed April 9 and April 13, 2026, the defense anti-SLAPP
16 reply filed May 5, 2026, and the May 12, 2026 minute order of Dept. 301 granting the special
17 motion to strike.
- 18 2. Apply the doctrine of judicial estoppel under *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986
19 to 987, and *Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 181, 183, to bind
20 Defendant CSAA to the substantive 801 positions on which Department 301 granted relief
21 on May 12, 2026, and to deny, limit, or disregard the 802 anti-SLAPP, demurrer, and section
22 436 arguments to the extent they depend on positions inconsistent with those accepted 801
23 positions.

24 This Notice does not rely on CSAA's quotations of Plaintiff's First Amended Complaint as admis-
25 sions of truth. It relies on CSAA's use of those quoted acts as the protected conduct supporting
26 its 801 anti-SLAPP motion and related privilege arguments. Having selected the pleaded acts as
27 the operative protected gravamen in 801 and obtained relief on that characterization, CSAA is
28 estopped from taking positions inconsistent with that selection in this Department.

II. WHAT THIS NOTICE DOES NOT ASK

This notice is not a request for ordinary collateral estoppel. Plaintiff does not ask the Court to decide that the 801 ruling has issue-preclusive effect on any element of the 802 claims. Plaintiff does not ask the Court to take judicial notice of the truth of every factual recital inside the 801 filings or the May 12 minute order. The Court is asked only to notice that the 801 filings and order exist, were filed by and signed for the same defense interests, and recite the positions Plaintiff identifies. The Court is then asked to apply judicial estoppel, which is a separate equitable doctrine grounded in the integrity of the judicial process, not in issue preclusion. (*Jackson*, supra, 60 Cal.App.4th at 181 [judicial estoppel “is intended to protect against a litigant playing fast and loose with the courts”]; *Daar & Newman v. VRL International* (2005) 129 Cal.App.4th 482, 491 [judicial estoppel reaches positions of counsel imputed to the client].)

By this filing, Plaintiff places before this Department the express statutory and rules authority for each accompanying paper. Plaintiff’s authority to file each paper, and the Clerk’s authority to accept it, are set forth in each paper’s Authority to File section and rest on Code of Civil Procedure sections 1005, 1010, 1010.6, 1014, and 2015.5; California Rules of Court, rules 1.21, 2.100 through 2.111, 2.118, 2.119, 2.256, 2.257, 3.1110, 3.1113, 3.1306, and 3.1312; Evidence Code sections 451, 452, and 453; and Government Code sections 68150 and 69845. No paper in this cohort is filed under any unenumerated or extra-judicial authority.

III. THE NARROW REQUEST

Plaintiff asks Department 302 to find, on the face of the noticed 801 record, that Defendant CSAA prevailed on its 801 special motion to strike by characterizing the challenged conduct as defense-team litigation conduct involving possession, retention, transfer, production, and court-facing statements about the 911 audio, body-worn camera footage, and computer aided dispatch records. Plaintiff then asks the Court to deny or disregard, at the June 24 hearing, those 802 arguments that depend on the contrary propositions that CSAA had no role in the underlying litigation, that Plaintiff cannot know what CSAA did in its investigation, that the in-court representations were not factual but merely a “good faith dispute over the interpretation of evidence,” that no investigative duty exists, and that the underlying 9-3 defense verdict is a clean validation of the February 25,

2021 denial letter.

- Deny or limit any 802 argument that CSAA performed a complete pre-denial investigation or reviewed “available evidence” to the extent that argument conflicts with MIL 6 and MIL 17 positions in the noticed record that the same silent-witness materials had unknown provenance and were not produced in discovery.

IV. RELATED CASES, SAME COUNSEL, SAME EVIDENTIARY NUCLEUS

CGC-25-631801 and CGC-25-631802 are related under California Rules of Court, rule 3.300, by the parties’ notices of related case and by the defense’s own footnote references in 802 papers to the parent appeal *Rosario v. Abdelhalim*, Court of Appeal Case No. A173827. The same firm (Porter Scott, A Professional Corporation) signs the operative defense papers in both cases. The same insured, the same incident of February 4, 2021, the same February 25, 2021 denial letter, and the same physical evidentiary nucleus (911 audio, body-worn camera footage, and CAD logs) anchor both records. The privity, counsel-identity, and same-nucleus showing is set forth in the accompanying Verified Statement of Privity (filing item 08).

V. ACCOMPANYING PAPERS

Filed and served with this Notice are:

1. Memorandum of Points and Authorities titled “Defendant CSAA Must Be Held to the 801 Position It Successfully Advanced” (filing item 02).
2. Declaration of Franciscus Dylan Rosario authenticating the noticed 801 filings and the May 12 minute order (filing item 03).
3. Supplemental Request for Judicial Notice of 801 Filings and the May 12 Order under Evidence Code sections 452, subdivisions (d) and (h), and 453 (filing item 04).
4. Index of 801 Estoppel Appendix mapping each 801 exhibit to the estoppel element it supports (filing item 05).
5. Proposed Order Granting Cross-Case Judicial Estoppel Relief (filing item 06).
6. Verbatim 801 Admissions and 802 Contradictions, with pin cites (filing item 07).

1 7. Privity, Counsel Identity, and Same Nucleus statement (filing item 08).

2 8. Proof of Service (POS-050).

3 **VI. RELIEF REQUESTED**

4 For the reasons set forth in the accompanying memorandum, Plaintiff respectfully requests that the
5 Court, at the June 24, 2026 hearing:

6 A. Grant the Supplemental Request for Judicial Notice as to the existence, filing, contents, and
7 legal effect of the identified 801 filings and the May 12, 2026 minute order;

8 B. Find, on the face of those noticed records, that Defendant CSAA successfully advanced the 801
9 positions identified in filing item 02 and that Department 301 accepted those positions on May 12,
10 2026; and

11 C. Apply judicial estoppel to deny, limit, or disregard the inconsistent 802 anti-SLAPP, demurrer,
12 and section 436 arguments to the extent they depend on positions inconsistent with those accepted
13 801 positions, including but not limited to the propositions identified at filing item 02, sections IV
14 through VII.

15 D. In the alternative, treat this Notice as a non-dispositive evidentiary submission limiting the
16 inferences the Court may draw from the noticed 802 papers in resolving the pending motions,
17 without prejudice to any further relief.

Dated: June 24, 2026



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Plaintiff, In Pro Per

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